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Registrar Act 36 of 1947
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By email: MalutaM@nda.gov.za

RE: Public comments on Government Notice No. 6993 (13 January 2026): intended prohibition of terbufos agricultural remedies in terms of section 7bis of Act 36 of 1947

This comment is made by UnPoison, a civil society collective made up of multi sector organisations, educational institutions, NPOs, agronomists, researchers, advocacy groups, communities, environmental practitioners, scientists, doctors, and concerned citizens, committed to a sustainable, healthy, clean, safe, just and thriving agricultural sector; a healthy food system, and a food secure future for all South Africans.

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Executive summary

UnPoison supports the stated intention to prohibit the acquisition, disposal, sale and use of agricultural remedies containing terbufos, but objects to any continued or built-in delay in implementation. The Notice indicates an intended prohibition “as of 28 February 2026” and invites comments within 45 days.

On the available evidence, and on constitutional and administrative-law principles, there are no reasonable, rational, or lawful grounds to permit terbufos to remain lawful for a further period. Where an organophosphate is linked to repeated child fatalities and an ongoing illicit market in vulnerable communities, delay is foreseeably lethal and entirely unconstitutional.

UnPoison accordingly requests that the Minister/Registrar:

- (a) Finalise the prohibition without further delay, and make the prohibition effective immediately on the 28th February 2026 i.e., no additional phase out period beyond gazetting. The companies importing terbufos must be tasked with collecting and disposing of this hazardous waste as required by law.
- (b) In parallel, adopt and publish immediate interim emergency measures to eliminate ongoing harm, including at minimum: an urgent directive to halt sales and distribution; accelerated seizure of informal/street product; and immediate steps to secure and dispose of stockpiles.
- (c) Record expressly that reliance on “restricted use/PCO” controls is not a lawful risk-management basis at present, given the recent High Court clarification described below.
- (d) Commit to a cross-department enforcement plan (DALRRD + SAPS + Health + municipalities) with measurable actions, timelines, and public reporting.

Background: the Notice and the problem of delay

Government Notice No. 6993 is issued under section 7bis of Act 36, which empowers the Minister, by Gazette notice, to prohibit the acquisition, disposal, sale or use of agricultural remedies.

Cabinet approved a terbufos ban on 12th June 2025. The present notice, published only on 13th January 2026 and proposing an effective date of 28 February 2026, extends an already prolonged exposure window.

The issue is not theoretical. Multiple authoritative sources (including a Ministerial Advisory Committee process) describe ongoing mortality, including among children, and continued access in informal markets notwithstanding “restricted” classification.

Evidence of severe harm and an ongoing epidemic of poisoning

Terbufos is described as a WHO Class 1a pesticide, the most acutely toxic classification.

Ministerial Advisory Committee material reports high mortality linked to terbufos, including that forensic chemistry laboratory data showed at least 375 deaths in 2023 - 2024, and that terbufos is confirmed as responsible for at least 175 deaths per annum, with approximately 35% children.

The same material records that the Naledi deaths are “likely only the tip” of a broader poisoning iceberg, and that existing controls have failed to reduce access.

Civil society and academic submissions to the Minister (ACB December 2024) record that terbufos poisonings have “tragically fallen on children”, triggering the constitutional imperative that the child’s best interests are paramount.

Evidence that “restriction” has failed and street access persists

The December 2024 ACB letter copied to the Minister and Registrar, records that terbufos is “widely available” and can be bought in spaza shops and through street traders as a so-called street pesticide, and notes that researchers found terbufos products sold online without the required restricted-use indications.

The Ministerial Advisory Committee documentation likewise records illegal sales in informal street markets and spaza shops in poor communities, tied to rat infestations and inadequate municipal waste management, and notes that terbufos remained reported as available in informal markets even after inspections.

Recent reporting continues to describe terbufos being sold openly by vendors for small sums (R10), reinforcing that ongoing access is not an isolated incident but a continuing enforcement failure.

These facts matter legally: where the State knows, or ought reasonably to know, that a hazardous product continues to circulate widely outside lawful channels, continued legality of supply and possession materially enables diversion, undermines enforcement, and perpetuates foreseeable harm.

Critical new legal development: the CropLife High Court ruling confirms safeguards are not legally in place

CropLife South Africa’s published clarification (29 January 2026) states that on 26 January 2026, the High Court declared that the category “restricted agricultural remedy” (Annexure A, Government Notice 3812 of 25 August 2023) is not included in the class of “restricted-use agricultural remedy” under the Pest Control Operator (PCO) Regulations (Government Notice 98 of 18 February 2011), and is therefore not subject to regulatory control under the PCO Regulations.

CropLife further notes that the Department “may correct this ambiguity” by amending legislation in future, implicitly confirming that the intended restriction-to-PCO mechanism is presently not secured as a matter of law.

Legal consequence: any argument for delay premised on “restricted use” controls (PCO licensing; controlled purchase; trained applicators) is not merely factually weak, it is legally unreliable. The State cannot justify exposing the public to a known extreme hazard while relying on controls that a court has clarified are not applicable to the relevant category.

This significantly strengthens the case that only a prohibition (rather than “management by restriction”) meets the constitutional threshold of reasonable measures.

International and regional context

Terbufos is widely described as not registered/approved in the EU and as banned from pesticide uses there.

Terbufos has been banned in numerous jurisdictions, including Angola, Botswana, Comoros, Democratic Republic of the Congo, Madagascar, Malawi, Mauritius, Mozambique, Namibia, Seychelles, Tanzania, and Zambia and Zimbabwe no longer imports it.

Regional precedent is not determinative in itself, but it is relevant to the legality review: when comparable jurisdictions have concluded the risk is unmanageable, it becomes more difficult for South Africa to justify continued lawful availability, especially where diversion into domestic informal markets and child deaths are documented and have been for 15 years.

Constitutional and statutory duties requiring urgent, effective measures

The Constitution’s clauses Right to life (s11) and right to an environment not harmful to health or well-being (s24) require the State to take reasonable steps to prevent avoidable death and serious harm from hazardous substances.

The Constitution imposes a positive duty on the State to “respect, protect, promote and fulfil” rights (s7(2)), and requires interpretation of legislation to promote the spirit, purport and objects of the Bill of Rights (s39(2)).

Children’s rights: Where harm falls disproportionately on children, the Constitution requires that a child’s best interests are “of paramount importance” (s28(2)). This is expressly in relation to terbufos poisoning.

NEMA principles (Act 107 of 1998): organs of state must apply principles including the precautionary approach, environmental justice, pollution prevention, transparent decision-making, and cradle-to-grave responsibility. These principles are binding on all Ministries in decisions significantly affecting the environment and health.

Act 36 section 7bis: the Minister has explicit power to prohibit acquisition/disposal/sale/use by notice in the Gazette. The discretion must be exercised lawfully, rationally, reasonably, and consistently with constitutional rights.

Further delay is unlawful

The evidence shows (i) ongoing deaths, including children, (ii) continued illegal market access, and (iii) non-functioning/insufficient legal restrictions.

Precautionary principle: Where evidence indicates extreme toxicity and unmanageable exposure pathways, the legally required response is to prevent harm rather than to tolerate continued exposure while hoping enforcement improves later. The Ministerial Advisory Committee recommendation expressly supports immediate banning without delay.

Foreseeability of harm: The State has been on notice for years that street pesticides and diversion are widespread; the record includes repeated warnings, documented fatalities, and continuing market availability.

Failure to consider relevant considerations / over-reliance on irrelevant ones: Any further delay justified by “stewardship”, “training”, or “restriction to PCOs” is undermined because the PCO regulatory hook is not applicable to “restricted agricultural remedies” as clarified by the High Court.

Necessary accompanying measures to make prohibition effective in practice

UnPoison supports a prohibition accompanied by enforceable, time-bound implementation steps, including:

Immediate stop-supply measures: directions to wholesalers/retailers/co-ops to halt sale/distribution of terbufos products pending final prohibition (or at minimum to freeze non-essential supply and require rapid reporting of stock holdings).

Stockpile recall and safe disposal: a national plan for retrieval and safe destruction of existing stocks, including from commercial channels and seized informal products, with public reporting to be implemented by the companies selling terbufos and CropLife.

Joint enforcement operations: coordinated SAPS-DALRRD-Health-municipal actions targeting diversion points and street markets, with a public hotline and anonymised reporting.

Public risk communication: plain-language warnings and community outreach on acute poisoning risk, chronic health effects, the Poison Information Hotline number, emergency response steps, and reporting channels.

Data transparency: publish terbufos incident data and enforcement metrics (seizures, prosecutions, stock recovered, disposal certificates) to restore public confidence.

Enforcement And Penalties: A Prohibition Must Be Backed By Real Consequences

UnPoison submits that any prohibition of terbufos will fail in practice unless accompanied by credible enforcement measures and serious consequences for transgressions, particularly given the established diversion of highly hazardous pesticides into informal and street markets.

Act 36 is primarily enforced through criminal offences (fine and/or imprisonment), which require investigation, docket-building, prosecution and court time. This model is ill-suited to widespread, repeat, low-visibility contraventions occurring across fragmented distribution chains and informal markets.

It also places avoidable strain on the criminal justice system and creates a low-certainty enforcement environment that undermines deterrence.

The Act's maximum penalty is the puny amount of R1000, which means that the cost of the risk for breaching constitutional and human rights is negligible, and the potential for profit attractively far outweighs that risk.

UnPoison therefore urges that the final prohibition be accompanied by an enforcement package that includes:

- (a) swift, scalable administrative penalties (monetary fines) for unlawful sale, possession, distribution, decanting or advertising of terbufos;
- (b) seizure and forfeiture measures for unlawful stock;
- (c) licence/registration consequences for formal actors (suspension, cancellation, debarment) where diversion occurs; and
- (d) a published inter-departmental plan for enforcement operations, reporting, and disposal of seized stock.

Administrative monetary penalties are essential because they can be imposed on a civil/administrative standard of proof (balance of probabilities), are generally faster and simpler than criminal prosecutions, and allow prosecutions to be reserved for the most serious or repeated cases. They also enable the regulator to remove the economic benefit of non-compliance swiftly and at scale.

South African regulatory practice recognises administrative fines as a practical enforcement tool in comparable contexts, including environmental regulation.

UnPoison further submits that, to be lawful, fair and effective, any administrative penalty regime should be guided by a published penalty methodology that sets a transparent basis for penalty calculation, comprising:

- (a) an economic-benefit component (recovering gains from non-compliance, including avoided costs, delayed costs, and illegal competitive advantage); and
- (b) a gravity component based on the seriousness of harm (actual or potential), the importance of the prohibition to the regulatory scheme, and the scale of the violator,

with adjustment factors for willfulness/negligence, cooperation, prior contraventions, and ability to pay.

To ensure deterrence across both large formal actors and smaller distributors, the methodology should include scalable measures such as:

- (a) penalties capped or scaled by a fixed percentage of annual turnover (for juristic persons and supply-chain actors with material market power); and/or
- (b) daily penalty rates for continuing contraventions (including continued possession, continued offering for sale, continued failure to surrender stock, or continued obstruction).

In the absence of a credible penalty and enforcement regime, a terbufos “ban” risks becoming a paper exercise while the product continues to circulate illegally, thereby undermining the purpose of the prohibition and prolonging preventable harm, including child fatalities.

The above framework should be developed and adopted as the penalty system for transgressions regarding all HHP’s, those that are banned, those that are set for phase out/ ban (substances of concern) and restricted use pesticides.

Conclusion

Terbufos is an extreme hazard with a documented pattern of child fatalities and ongoing informal market availability. Evidence indicates that restrictions have not prevented diversion and harm, and the High Court clarification confirms that reliance on PCO-based restriction is not presently secured in law.

In these circumstances, any further delay, including delaying the effective date after the final prohibition notice is published, constitutes an unreasonable and legally indefensible exposure of the public (and especially children) to a foreseeable risk of death and serious harm, inconsistent with constitutional duties and NEMA principles.

UnPoison therefore urges the Minister/Registrar to finalise the prohibition urgently and ensure it is effective immediately upon publication, with strong accompanying enforcement and disposal measures.

These comments are made on behalf of the UnPoison Network via a collaborative input.



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NETWORK COORDINATOR

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